

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 27-005

**Amendments to Title 2 and Title 16 of the Chickasaw Nation Code
(Legislative Department Travel)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and procedures for travel by members of the Legislative Department, and

WHEREAS, the Tribal legislature desires to amend those rules and procedures.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 2, Chapter 6 Section 2-601 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

**“CHAPTER 6
TRAVEL POLICY**

**ARTICLE A
LEGISLATIVE TRAVEL POLICIES**

Section 2-601 Authority.

SECTION 2-601 AUTHORITY.

A. The Legislative Committee of the Chickasaw Nation Tribal Legislature, ~~by committee rule,~~ shall define and establish ~~the~~ **a** Legislative Travel Policy**ies** for the Chickasaw Tribal Legislature. ~~The Legislative Travel Policies and the rules established by the Legislative Committee to administer them, shall become effective when approved by the Tribal Legislature and concurred by the Governor of the Chickasaw Nation.~~

B. ~~In the administration of the Legislative Travel Policy of the Chickasaw Tribal Legislature,~~ **Regarding Legislative travel**, such forms as are required by the Finance Department in the filing and payment of travel claims or advances ~~shall be as are being utilized at the time such claims or advances are requested and paid, shall be utilized by the Legislative Department.~~ **and** Such travel claims and advances shall be paid from the budgeted funds of the Chickasaw Tribal Legislature without unreasonable delay. ~~The Chickasaw Tribal Legislature may redirect unexpended budget line items to their travel line item, when needed.~~

C. The Legislative Travel Policy and the rules of administration shall apply; only to the Chickasaw Tribal Legislators, ~~the Legislative Department Staff and any others the~~ Chickasaw Tribal Legislature may, otherwise, designate.

~~D. All provisions in existence prior to the enactment of PR13-06, pertaining to specific travel policies and travel rules of the Chickasaw Tribal Legislature, except the provisions of GR6-28, are hereby repealed. Specifically, Section 2-602 through Section 2-607 are hereby repealed.~~

~~E. Nothing contained herein shall interfere with the payment of any travel claims or advances that are in process at the time PR13-06 becomes law."~~

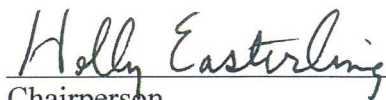
NOW, THEREFORE, BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 16, Chapter 2 Section 2-204 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 16-204 COMMITTEES AND RULES.

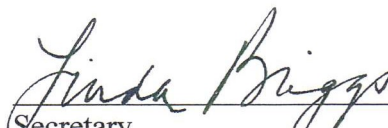
D. A "Special Committee" or "Select Committee" is a Committee comprised only of members of the Legislature, to attempt to represent all points of view in the Legislature, appointed by the Chairperson, which investigates and reports on specific matters, and is dissolved by the Chairperson when that function is deemed to have been served.

1. The "Special Advisory Committee" is a Special or Select Committee and shall consist of three (3) members of the Tribal Legislature, appointed by the Chairperson. They shall be responsible for reviewing and approving any expenditures from the Legislative Department Budget, ~~including travel~~, which amount to five hundred dollars (\$500) or more that is not part of the normal, usual and customary day-to-day operating expenses of the Legislative Department and offices. All decisions of the Committee shall be reported to the entire Legislature in a timely manner."

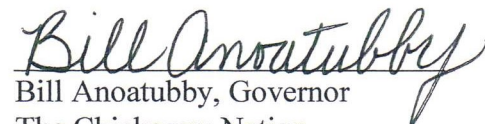
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on June 18, 2010, by a vote of 9 ayes, 2 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 

Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUN 21 2010

CHICKASAW TRIBAL LEGISLATURE
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(Legislative Department Travel)

Explanation: This resolution amends Title 2 of the Chickasaw Nation Code so that a travel policy for Legislative travel can be approved and adopted by the Legislative Committee. It also provides that the forms and processes necessary for Legislative Department travel will comport with those utilized by the Chickasaw Nation Division of the Treasury.

The resolution also deletes language from Title 16, Section 16-204 so that the Special Advisory Committee does not have the responsibility of approving travel requests.

This resolution is needed so that a proper travel policy for the Legislative travel can be adopted by the Legislature sitting as the Legislative Committee.

Presented By: Legislative Committee